

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
WARREN BARTLEY,

Plaintiff,

-against-

**VERIFIED
COMPLAINT**

Index #

THE CITY OF NEW YORK, P.O. JOHN SIVORI,
Shield #26385, SGT. MICHAEL KATINAS, Shield
No. 468 and P.O. EDWARD THOMPSON, Shield #26456,Defendants.
-----X

Plaintiff, WARREN BARTLEY, by his attorneys, RUBERT & GROSS, P.C.,
complaining of defendants, THE CITY OF NEW YORK (hereinafter "CITY"), P.O. JOHN
SIVORI, Shield #26385 (hereinafter "SIVORI"), SGT. MICHAEL KATINAS, Shield No. 468
(hereinafter "KATINAS") and P.O. EDWARD THOMPSON, Shield # 26456 (hereinafter
"THOMPSON") alleges as follows:

1. At all times hereinafter mentioned, defendant, CITY OF NEW YORK (hereinafter "CITY"), was and still is a municipal corporation organized and duly existing under and pursuant to the laws of the State of New York.
2. At all times hereinafter mentioned, defendant, CITY, maintained a Police Department, the employees of which act as its agents in the area of law enforcement.
3. At all times hereinafter mentioned, defendant, SIVORI, was a police officer with the New York City Police Department.
4. At all times hereinafter mentioned, defendant, THOMPSON, was a police officer with the New York City Police Department.

5. At all times hereinafter mentioned, defendant, SIVORI, was an employee and/or agent of the New York City Police Department.
6. At all times hereinafter mentioned, defendant, THOMPSON, was an employee and/or agent of the New York City Police Department.
7. At all times hereinafter mentioned, defendant, KATINAS, was a police officer with the New York City Police Department.
8. At all times hereinafter mentioned Defendant, SIVORI, was acting within the scope of his employment as a detective/police officer with the Police Department of the City of New York.
9. At all times hereinafter mentioned Defendant, THOMPSON, was acting within the scope of his employment as a detective/police officer with the Police Department of the City of New York.
10. At all times hereinafter mentioned Defendant, KATINAS, was acting within the scope of his employment as a detective/police officer with the Police Department of the City of New York.
11. At all times hereinafter mentioned defendant, SIVORI, is sued individually and in his official capacity.
12. At all times hereinafter mentioned defendant, THOMPSON, is sued individually and in his official capacity.
13. At all times hereinafter mentioned defendant, KATINAS, is sued individually and in his official capacity.
14. On April 4, 2014 within ninety (90) days of all criminal charges against plaintiff

having been dismissed, plaintiff filed a Notice of Claim with the Comptroller of the City of New York in the manner and mode required by law.

15. More than 60 days have elapsed since the filing of the Notices of Claim and adjustment or payment thereof has been neglected or refused.
16. That this action is brought within one (1) year and ninety (90) days from the date that from the date all criminal charges against plaintiff been dismissed.
17. That Plaintiff has complied with all conditions precedent applicable to the instant action.
18. That this action falls within one or more of the exceptions of CPLR §1602, including, but not limited to CPLR §1602 (11).

FIRST CAUSE OF ACTION

(State Law Malicious Prosecution against all Defendants)

19. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.
20. On June 1, 2011, at approximately 11:45 p.m., while plaintiff was in front of 888 East 6th Street, New York, New York, he was falsely arrested.
21. On June 1, 2011, plaintiff was taken to the 9th Precinct, located at 321 East 5th Street, New York, New York where he was searched, assaulted and battered by defendant, CITY'S employees, including defendants, SIVORI, KATINAS and THOMPSON.
22. On June 1, 2011 plaintiff was wrongfully and maliciously accused by defendants of criminal possession of a controlled substance in the fourth degree and resisting arrest.
23. On June 1, 2011, plaintiff was assaulted and battered by defendant, SIVORI.

24. On June 1, 2011, plaintiff was assaulted and battered by defendant, THOMPSON.
25. On June 1, 2011, plaintiff was assaulted and battered by defendant, KATINAS.
26. That following plaintiff's arrest on June 1, 2011, defendant, CITY, its agents, servants and/or employees, including but not limited to defendants, SIVORI, THOMPSON and KATINAS, intentionally, knowingly, recklessly, negligently and with malice caused the commencement of a criminal prosecution against plaintiff without probable cause and in bad faith.
27. Plaintiff was released from custody on June 2, 2011.
28. That following plaintiff's arrest on June 1, 2011, defendant, SIVORI, knowingly, recklessly, negligently and with malice initiated, caused and continued a criminal prosecution against plaintiff without probable cause and in bad faith.
29. That following plaintiff's arrest on June 1, 2007, defendant, THOMPSON, intentionally, knowingly, recklessly, negligently and with malice caused the commencement and continuation of a criminal prosecution against plaintiff without probable cause and in bad faith.
30. That following plaintiff's arrest on June 1, 2007, defendant, KATINAS, intentionally, knowingly, recklessly, negligently and with malice caused the commencement and continuation of a criminal prosecution against plaintiff without probable cause and in bad faith.
31. That subsequent to plaintiff's arrest, defendant, SIVORI, did give false information and/or testimony in connection with plaintiff's criminal prosecution.
32. That subsequent to plaintiff's arrest, defendant, THOMPSON, did give false

information and/or testimony in connection with plaintiff's criminal prosecution.

33. That subsequent to plaintiff's arrest, defendant, KATINAS, did give false information and/or testimony in connection with plaintiff's criminal prosecution.
34. That in commencing and continuing the aforementioned prosecution against plaintiff, defendant, CITY, acted with malice.
35. That in commencing and continuing the aforementioned prosecution against plaintiff, of defendant, SIVORI, with acted malice.
36. That in commencing and continuing the aforementioned prosecution against plaintiff, defendant, THOMPSON, acted with malice.
37. That in commencing and continuing the aforementioned prosecution against plaintiff, of defendant, KATINAS, with acted malice.
38. In commencing and continuing said malicious prosecution, defendants individually and through their agents, servants and/or employees caused plaintiff to be falsely charged with acts in violation of the Penal Law of the State of New York.
39. That plaintiff had not committed or attempted to commit any illegal act(s).
40. That defendant, CITY, did not have probable cause probable cause to believe that plaintiff had committed the illegal acts of which he was accused.
41. That defendant, SIVORI, did not have probable cause probable cause to believe that plaintiff had committed the illegal acts of which he was accused.
42. That defendant, THOMPSON, did not have probable cause probable cause to believe that plaintiff had committed the illegal acts of which he was accused.
43. That defendant, KATINAS, did not have probable cause probable cause to believe

- that plaintiff had committed the illegal acts of which he was accused.
44. That defendants, their agents, servants and/or employees, knew, or should have known through the exercise of proper police and/or investigatory procedures and reasonable care that said investigation was false, flawed and incomplete.
45. That defendants, individually and through their agents servants and /or employees willfully and wrongfully accused plaintiff of having violated the Penal Law of the State of New York.
46. That on January 24, 2014 all criminal charges against plaintiff were dismissed.
47. As a result of the foregoing, plaintiff was caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.
48. By reason of the foregoing, plaintiff demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

SECOND CAUSE OF ACTION

(U.S.C. § 1983 based on False Arrest, Assault and Battery, Malicious Prosecution and Malicious Abuse of Process against all Defendants)

49. Plaintiff repeats and re-alleges each and every allegation set forth above as though fully set forth at length herein.
50. By his conduct and actions in falsely arresting and imprisoning plaintiff; trespassing upon plaintiff; assaulting and battering plaintiff; maliciously prosecuting plaintiff; abusing process against plaintiff; violating plaintiff's rights to equal protection;

violating plaintiff's rights to substantive and procedural due process; invading plaintiff's privacy; fabricating an account and/or evidence concerning the arrest of plaintiff; withholding exculpatory evidence; failing to properly investigate; failing to intercede on behalf of the plaintiff and in failing to protect the plaintiff from the unjustified and unconstitutional treatment he received at the hands police officers, defendant, SIVORI, acting under color of law and without lawful justification, intentionally, maliciously, and with a deliberate indifference to or a reckless disregard for the natural and probable consequences of his acts, caused injury and damage in violation of plaintiff's constitutional rights as guaranteed under 42 U.S.C. §1983, the United States Constitution, including its Fourth, and Fourteenth amendments and the Constitution of the State of New York.

51. By his conduct and actions in falsely arresting and imprisoning plaintiff; trespassing upon plaintiff; assaulting and battering plaintiff; maliciously prosecuting plaintiff; abusing process against plaintiff; violating plaintiff's rights to equal protection; violating plaintiff's rights to substantive and procedural due process; invading plaintiff's privacy; fabricating an account and/or evidence concerning the arrest of plaintiff; withholding exculpatory evidence; failing to properly investigate; failing to intercede on behalf of the plaintiff and in failing to protect the plaintiff from the unjustified and unconstitutional treatment he received at the hands police officers, defendant, THOMPSON, acting under color of law and without lawful justification, intentionally, maliciously, and with a deliberate indifference to or a reckless disregard for the natural and probable consequences of his acts, caused injury and damage in

violation of plaintiff's constitutional rights as guaranteed under 42 U.S.C. §1983, the United States Constitution, including its Fourth, and Fourteenth amendments and the Constitution of the State of New York.

52. By his conduct and actions in falsely arresting and imprisoning plaintiff; trespassing upon plaintiff; assaulting and battering plaintiff; maliciously prosecuting plaintiff; abusing process against plaintiff; violating plaintiff's rights to equal protection; violating plaintiff's rights to substantive and procedural due process; invading plaintiff's privacy; fabricating an account and/or evidence concerning the arrest of plaintiff; withholding exculpatory evidence; failing to properly investigate; failing to intercede on behalf of the plaintiff and in failing to protect the plaintiff from the unjustified and unconstitutional treatment he received at the hands police officers, defendant, KATINAS, acting under color of law and without lawful justification, intentionally, maliciously, and with a deliberate indifference to or a reckless disregard for the natural and probable consequences of his acts, caused injury and damage in violation of plaintiff's constitutional rights as guaranteed under 42 U.S.C. §1983, the United States Constitution, including its Fourth, and Fourteenth amendments and the Constitution of the State of New York.
53. That defendant, SIVORI, violated Plaintiff's civil rights by falsely arresting him in violation of 42 U.S.C. §1983, the U.S. Constitution and the Constitution of the State of New York.
54. That defendant, THOMPSON violated Plaintiff's civil rights by falsely arresting him in violation of 42 U.S.C. §1983, the U.S. Constitution and the Constitution of the

State of New York.

55. That defendant, KATINAS, violated Plaintiff's civil rights by falsely arresting him in violation of 42 U.S.C. §1983, the U.S. Constitution and the Constitution of the State of New York.
56. That defendant, SIVORI, violated Plaintiff's civil rights by falsely accusing him of having committed a crime in violation of the 42 U.S.C. §1983, the U.S. Constitution and the Constitution of the State of New York.
57. That defendant, THOMPSON, violated Plaintiff's civil rights by falsely accusing him of having committed a crime in violation of the 42 U.S.C. §1983, the U.S. Constitution and the Constitution of the State of New York.
58. That defendant, KATINAS, violated Plaintiff's civil rights by falsely accusing him of having committed a crime in violation of the 42 U.S.C. §1983, the U.S. Constitution and the Constitution of the State of New York.
59. That the conduct and actions of defendants, acting in concert and under color of State law, by falsely arresting Plaintiff were done intentionally, maliciously, and/or with a reckless disregard for the natural and probable consequences of his acts, were done without lawful justification, and were designed to and did cause specific and serious bodily harm, pain and suffering in violation of Plaintiff's Constitutional rights and are therefore actionable under 42 U.S.C. §1983, the United States Constitution, Amendments One, Four and Fourteen, and the Constitution of the State of New York.
60. That defendant, SIVORI, by malicious prosecuting Plaintiff deprived him of his liberty in violation of Plaintiff's civil and constitutional rights, as guaranteed under 42

U.S.C. §1983 and set forth in the United States Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.

61. That defendant, THOMPSON, by malicious prosecuting Plaintiff deprived him of his liberty in violation of Plaintiff's civil and constitutional rights, as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.
62. That defendant, KATINA, by malicious prosecuting Plaintiff deprived him of his liberty in violation of Plaintiff's civil and constitutional rights, as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.
63. That defendant, SIVORI, by assaulting and battering Plaintiff, used excessive force in violation of Plaintiff's civil and constitutional rights, as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.
64. That defendant, THOMPSON, by assaulting and battering Plaintiff, used excessive force in violation of Plaintiff's civil and constitutional rights, as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.
65. That defendant, KATINAS, by assaulting and battering Plaintiff, used excessive force in violation of Plaintiff's civil and constitutional rights, as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.

66. That the actions taken by defendants were undertaken under color of law and would not have existed but for said defendants using their official power.
67. That as a result of the aforementioned violations of plaintiff's civil rights, plaintiff was caused to sustain and suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.
68. By reason of the foregoing, Plaintiff demands judgment against defendants, SIVORI, THOMPSON and KATINAS in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

THIRD CAUSE OF ACTION
(Conspiracy under 42 U.S.C. § 1983 against all Defendants)

69. Plaintiff repeats and re-alleges each and every allegation set forth above as though fully set forth at length herein.
70. That defendants, SIVORI, THOMPSON and KATINAS, color of law, conspired with each other as well as with others, including but not limited to defendants, to reach a mutual understanding and thereafter acted to undertake a course of conduct to injure, oppress, threaten and intimidate plaintiff in the free exercise and enjoyment of the rights and privileges and equal protection of the law secured to him by the Constitution of the United States, including the rights: to be free from false arrest and false imprisonment; to be free from malicious prosecution; to not be subjected to excessive force; to associate and speak freely; to have fair and equal access to and seek redress in the courts; and to have fair and equal access to exculpatory evidence so as to be able to properly present a defense in a criminal matter.

71. That as part of the conspiracy among defendants SIVORI, THOMPSON and KATINAS and in furtherance of said conspiracy defendants willfully, recklessly and negligently accused plaintiff of committing a criminal act without probable cause; falsely arrested and imprisoned plaintiff; used excessive force against plaintiff; maliciously prosecuted plaintiff; covered up wrong doing by defendants, their agents, servants and/or employees, including but not limited to the deliberate, willful, malicious and/or negligent alteration, loss and/or destruction of exculpatory evidence, the failure to present exculpatory evidence, misrepresentation of evidence; suppression of exculpatory evidence; and by submitting false police reports, statements and/or testimony to support and corroborate the false charges against plaintiff.
72. As a result of the aforesaid conspiracy, plaintiffs were caused to suffer personal injuries, violation of civil and constitutional rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to their reputation and standing within their community.
73. By reason of the foregoing, plaintiffs demand judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

FOURTH CAUSE OF ACTION
**(42 U.S.C. § 1983 based on Denial of Procedural and Substantive
Due Process against all Defendants)**

74. Plaintiff repeats and re-alleges each and every allegation set forth above as though fully set forth at length herein.

75. By their conduct and actions in falsely arresting and imprisoning plaintiff; assaulting and battering plaintiff; using excessive force against plaintiff and maliciously prosecuting him, defendants, SIVORI, THOMPSON and KATINAS, violated plaintiff's rights to equal protection and both substantive and procedural due process of plaintiff as well as the protections afforded under the Fourth and Fourteenth Amendments of the U.S. Constitution and the Constitution of the State of New York.
76. That the actions of defendants, SIVORI, THOMPSON and KATINAS, resulting from plaintiff's arrest, detention, imprisonment, assault and battery and malicious prosecution deprived the plaintiff of rights, privileges, and immunities as guaranteed under the United States Constitution, Amendments One, Four, Five, and Fourteen, the New York State Constitution, the Civil Rights Acts, 42 U.S.C. §§1983 and 1988.
77. That defendants, SIVORI, THOMPSON and KATINAS, violated plaintiff civil rights by fabricating an account and/or evidence concerning the arrest of plaintiff; withholding exculpatory evidence, failing to properly investigate the circumstances of the crime of which plaintiff was wrongfully accused and in knowingly accusing plaintiff of a crime that defendants knew he had not committed.
78. As a result of the above constitutionally impermissible conduct, plaintiff was caused to suffer personal injuries, property damages, violation of civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.
79. By reason of the foregoing, plaintiff demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser

jurisdiction.

FIFTH CAUSE OF ACTION
(42 U.S.C. § 1983 Based on Unreasonable Continued Prosecution
Against all Defendants)

80. Plaintiff repeats and re-alleges each and every allegation set forth above as though fully set forth at length herein.
81. That at all times hereafter mentioned, defendant, CITY OF NEW YORK, wrongfully and impermissibly continued to prosecute plaintiff knowing that he was not guilty of the crime of which he was accused.
82. That at all times hereafter mentioned, defendant, SIVORI, wrongfully and impermissibly continued to prosecute plaintiff knowing that he was not guilty of the crime of which he was accused.
83. That at all times hereafter mentioned, defendant, THOMPSON, wrongfully and impermissibly continued to prosecute plaintiff knowing that he was not guilty of the crime of which he was accused.
84. That at all times hereafter mentioned, defendant, KATINAS, wrongfully and impermissibly continued to prosecute plaintiff knowing that he was not guilty of the crime of which he was accused.
85. That the purpose of defendants' continued prosecution of plaintiff, knowing that he was not guilty of the crime of which he was accused, was for an impermissible purpose.
86. That as a result of the above-described conduct, plaintiff was deprived of his rights, privileges, and immunities as guaranteed under the United States Constitution,

Amendments One, Four, Five, and Fourteen, the New York State Constitution, the Civil Rights Acts, 42 U.S.C. § 1983 and 1988.

87. As a result of the above-described impermissible conduct of the defendants, plaintiff demands judgment against said defendants in a sum of money, which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

SIXTH CAUSE OF ACTION

(42 U.S.C. § 1983 based on Failure to Intervene against all Defendants)

88. Plaintiff repeats and re-alleges each and every allegation set forth above as though fully set forth at length herein.
89. Defendants failed to intervene to prevent, end or report the unlawful and
- unconstitutional conduct to which plaintiff was subjected despite the fact that they had opportunities to do so.
90. The individual defendants, and each of them, thereby displayed deliberate indifference to plaintiff's rights, including but not limited to plaintiff's right to be free from unreasonable and unlawful searches and seizures; right to be free from use of excessive force; right to procedural and substantive due process, and right to a fair trial.
91. That by virtue of the aforementioned acts by defendants, plaintiff was deprived of his civil rights guaranteed under the Constitution of the United States, including his right under the Fourth and Fourteenth Amendments to the United States Constitution, and defendants therefore are liable to plaintiff for damages under 42 USC § 1983.
92. That as a result of the foregoing, plaintiff was severely and seriously injured, both bodily and mentally, suffered a loss of enjoyment of life, pain and suffering,

psychological and emotional injury, great humiliation, costs and expenses and suffered economic loss and other damages.

93. That defendants, SIVORI, THOMPSON and KATINAS are sued in their individual and official capacities.

94. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction over this action.

95. ion.

SIXTH CAUSE OF ACTION
Against Defendant City
(42 U.S.C. § 1983 – “Monell” Claim)

96. Plaintiff repeats and re-alleges each and every allegation set forth above as though fully set forth at length herein.

97. The acts by the police defendants described above were carried out pursuant to policies and practices of defendant, CITY, which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent, and cooperation and under the supervisory authority of the defendant City and its agency, the NYPD.

98. At all times material to this complaint, defendant, CITY, acting through its Police Department and through the individual defendants had *de facto* policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.

99. At all times hereinafter mentioned, defendant, CITY, had a policy and practice of ignoring citizens' rights as guaranteed by the United States Constitution and the

Constitution of the State of New York.

100. Defendant, City, had a policy of ignoring law enforcement improprieties and misconduct, including the purposeful and wrongful accusation of citizens' committing crimes that it knew they had not committed. .
101. That the City's policymaker's failure to train its employees in the constitutional limits of their authority evinced a pattern of deliberate indifference to the constitutional rights of the citizens of the City of New York.
102. At all times material to this complaint, defendant, CITY, acting through its Police Department and through the individual defendants, had *de facto* policies, practices, customs, and usages of failing to properly train, screen, supervise, or discipline employees and police officers, and of failing to inform the individual defendants' supervisors of their need to train, screen, supervise or discipline said defendants.
103. These policies, practices, customs, and usages were a direct and proximate cause of the unconstitutional conduct alleged herein.
104. At all times material to this complaint, the defendant CITY, acting through its police department and through the individual defendants, had *de facto* policies, practices, customs and/or usages of failing to assure that that citizens' constitutional rights were protected, including the right not to be wrongfully accused of committing crimes that the police and district attorney knew they had not committed.
105. At all times defendant, CITY, had a policy of prosecuting individuals in violation of their constitutional rights to be free from searches and seizures.
106. All of the acts by the police individual defendants described above were carried

out pursuant to policies and practices of the City of New York and the Police Department, which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent, and cooperation and under the supervisory authority of the defendant City and its agency and the NYPD.

107. The existence of such unlawful *de facto* policies and/or well-settled and widespread customs and practices has been known to supervisory and policy-making officers and officials of the CITY and the NYPD for a substantial period of time.

108. Despite knowledge of such unlawful *de facto* policies and practices, these supervisory and policy-making officers and officials of the CITY and the NYPD did not take steps to terminate these policies and practices, did not discipline individuals who engaged in such practices, or otherwise properly train police officers with regard to the constitutional and statutory limits on the exercise of their authority, and instead sanctioned and ratified these policies, customs, and practices through their deliberate indifference to or reckless disregard of the effect of said policies, customs and practices upon the constitutional rights of persons in the City of New York.

109. The CITY's policies and practices in existence at the time of the conduct complained of herein, which caused Plaintiff's injuries herein include, inter alia, the following:

- a. The failure to properly supervise, train, instruct, and discipline police officers and assistant district attorneys with regard to proper conduct and investigation at and in relation to a crime scene;

- b. The failure to properly supervise, train, instruct, and discipline police officers and assistant district attorneys with regard to the preparation of truthful accusatory instruments;
- c. The failure to properly supervise, train, instruct, and discipline police officers with regard to the preparation of truthful police paperwork, or to correctly and accurately document and preserve evidence or to memorialize investigative steps taken, or circumstances surrounding the obtaining of evidence, that could be relevant to the investigation and/or prosecution, and/or discoverable in any litigation;
- d. The failure to properly supervise, train, instruct, and discipline police officers and assistant district attorneys with regard to the New York State Penal Law and the state and federal Constitutions, and with regard to adequate evidence of crimes and to discipline those who unjustifiably charge and prosecute or continue to prosecute persons accused of crimes in the absence of probable cause;
- e. The failure to properly supervise, train, instruct, and discipline police officers and assistant district attorneys with regard to the exercise of their authority, including, without limitation, in regard to disclosure of exculpatory and/or impeaching evidence;
- f. The failure to disclose to the prosecution or the defense material evidence that is favorable to the accused person(s), either because of its exculpatory or impeachment value, in violation of an accused person's substantive and

procedural due process rights and Brady v. Maryland, 373 U.S. 83 (1963) and its progeny;

- g. The failure to properly supervise, train, instruct, and discipline police officers and assistant district attorneys with regard to proper methods of conducting interviews of witnesses and/or accused persons, and to discipline police officers who use improper methods to coerce and/or elicit false and improper identification procedures; The failure to properly supervise, train, instruct, and discipline police officers, and assistant district attorneys including defendants herein, known to be irresponsible in their dealings with citizens of the community, known to violate state and federal law and state and federal constitutional limitations in their investigative and law enforcement conduct, known to fabricate and falsify evidence, known to manipulate, intimidate, threaten, and coerce witnesses, known to deprive criminal defendants of their right to a fair trial, and known to arrest and initiate/continue prosecution in the absence of probable cause;
- h. Failing to establish or assure the functioning of a bona fide and meaningful departmental system for dealing with complaints of police misconduct, but instead responding to these types of complaints with bureaucratic power and official denials calculated to mislead the public;
- i. Failing to adequately investigate, monitor, audit, and respond to citizen complaints and other claims of police misconduct with the NYPD, such that defendant City and the NYPD knew about and acquiesced in a custom of

tolerating constitutional, statutory, and common law violations;

- j. The failure to properly supervise, train, instruct, and discipline police officers and assistant district attorneys with regard to proper, and constitutional, methods of conducting identification procedures, and of adequately preserving and documenting all critical aspects of such procedures, including the circumstances surrounding the procedure and all statements made by or to the witness participating in the procedure;
- k. The tacit acceptance of and encouragement of a code of silence wherein police officers regularly cover up police misconduct by refusing to report other officers' misconduct or by telling false and/or incomplete stories, inter alia, in sworn testimony, official reports, in statements to the Civilian Complaint Review Board ("CCRB") and the Internal Affairs Bureau, and in public statements designed to cover for and/or falsely exonerate accused police officers;
- l. Encouraging and/or failing to discipline officers for "testilying" and/or fabricating false evidence to bring about the police officers' preconceived perceptions or determinations of guilt, including, but not limited to, such perceptions and/or determinations influenced by racial prejudice and/or ethnic bias.

110. That defendant CITY, failed to implement proper procedures for the identifications of alleged perpetrators of violation of civil rights and of failing to properly train, supervise or discipline police supervisors and subordinate officers to

prevent them from failing to assure that proper procedures were implemented.

111. That such policies, practices, customs and/or usages are a direct and proximate cause of the unconstitutional conduct alleged herein.

112. At all times material to this complaint, the defendant, CITY, acting through its Police Department and through the individual defendants, had *de facto* policies, practices, customs and/or usages of encouraging and/or tacitly sanctioning the cover-up of law enforcement officers' misconduct, through the fabrication of false accounts and evidence and/or the withholding of exculpatory evidence. The aforementioned City policies, practices and customs of failing to supervise, train, instruct and discipline police officers and encouraging their misconduct are evidenced by the broad sweeping police misconduct detailed herein, where distinct sets of police officers endeavored to procure the prosecution and conviction of Plaintiff on charges of which Plaintiff was in fact innocent by, inter alia, creating and fabricating evidence to create the appearance of probable cause that Plaintiff had committed the crime, intentionally and maliciously concealing material exculpatory evidence, suborning perjurious testimony, and unduly influencing the statements and testimony of witnesses and the identifications made by witnesses by means of threats, coercion, violence, and deceit. These officers represent the corrupt policies and practices of various investigative units of the NYPD.

113. The CITY's policies, practices and customs in existence at the time of failing to supervise, train, instruct, and discipline police officers and encouraging their misconduct are further evidenced, inter alia, by the following:

- a. The Report of the Commission to Investigate Allegations of Police Corruption and the Anti-Corruption Procedures of the Police Department ("Mollen Commission Report"), dated July 7, 1994, states:

"In the face of this problem [of corruption], the [New York City Police] Department allowed its systems for fighting corruption virtually to collapse. It has become more concerned about the bad publicity that corruption disclosures generate than the devastating consequences of corruption itself. As a result, its corruption controls minimized, ignored and at times concealed corruption rather than root it out. Such an institutional reluctance to uncover corruption is not surprising. No institution wants its reputation tainted – especially a Department that needs the public's confidence and partnership to be effective. A weak and poorly resourced anti-corruption apparatus minimizes the likelihood of such taint, embarrassment and potential harm to careers. Thus there is a strong institutional incentive to allow corruption efforts to fray and lose priority – which is exactly what this Commission uncovered. This reluctance manifested itself in every component of the Department's corruption controls from command accountability and supervision, to investigations, police culture, training and recruitment.

"For at least the past decade, the system designed to protect the Department from corruption minimized the likelihood of uncovering it."

Mollen Commission Report, at 2-3.

- b. Accordingly, in 1990, the Office of the Special Prosecutor, which investigated charges of police corruption, was abolished.
- c. The Mollen Commission concluded that police perjury and falsification of official records

"is probably the most common form of police corruption facing the criminal justice system

* * *

Regardless of the motives behind police falsifications, what is particularly troublesome about this practice is that it is

widely tolerated by corrupt and honest officers alike, as well as their supervisors. Corrupt and honest officers told us that their supervisors knew or should have known about falsified versions of searches and arrests and never questioned them.

* * *

What breeds this intolerance is a deep-rooted perception among many officers of all ranks within the Department that nothing is really wrong with compromising facts to fight crime in the real world. Simply put, despite the devastating consequences of police falsifications, there is a persistent belief among many officers that it is necessary and justified, even if unlawful. As one dedicated officer put it, police officers often view falsification as, to use his words, 'doing God's work' – doing whatever it takes to get a suspected criminal off the streets. This attitude is so entrenched, especially in high-crime precincts, that when investigators confronted one recently arrested officer with evidence of perjury, he asked in disbelief, 'What's wrong with that? They're guilty.'"

Mollen Commission Report at 36, 40-41.

- d. Since at least 1984, defendant, City, the NYPD and the Bronx County District Attorney's Office have been on notice that their training of police officers has been inadequate and that police officers joining the force, including, on information and belief, individual defendant police officers herein, were disproportionately involved in misconduct and abuse. See, e.g., Mayor's Advisory Committee on Police Management and Personnel Policy, Final Report, February 24, 1987.
- e. The City of New York Office of the Comptroller, in an unpublished report, found that the police often conduct inadequate investigations.
- f. Prior to July 1993, the CCRB, which is responsible for receiving and investigating complaints of police misconduct made by citizens against members of the NYPD, operated as an agency of the NYPD rather than as an

independent, unbiased entity.

- g. During the 1980s and early 1990s, in and about the time frame of this case, the CCRB received numerous complaints of police misconduct, but failed to fully investigate many of them and substantiated the guilt of the accused police officer in a suspiciously minuscule number of cases.
- h. On average, in 1985-1988, the CCRB conducted complete investigations of only 27 percent of the complaints received, closed 45 percent of the total cases without completing full investigations, and substantiated (i.e., found the subject employee guilty of the alleged act of misconduct) only 1.9 percent of the total complaints received.
- i. In 1989, the CCRB conducted complete investigations of only 29 percent of the 3,515 complaints received, closed 41 percent of the total cases without completing full investigations, and substantiated only 2.6 percent of the total complaints received.
- j. On average, in 1990-1992, the CCRB conducted complete investigations of only 36 percent of the complaints received, closed 40 percent of the total cases without completing full investigations, and substantiated only 3.3 percent of the total complaints received.
- k. The CCRB has also failed to recommend disciplinary action in the vast majority of its cases.
- l. On average, in 1985-1988, the CCRB recommended disciplinary action in only 6.7 percent of its disposed of cases.

- m. In 1989, the CCRB recommended specific disciplinary action to the Police Commissioner in only 3.4 percent of its disposed of cases (i.e., 110 recommendations of discipline out of the 3262 disposed of complaints).
- n. On average, in 1990-1992, the CCRB recommended disciplinary action in only 7.5 percent of its disposed of cases.
- o. Moreover, most of the complaints that are substantiated by the CCRB do not result in any kind of meaningful discipline. For instance, as of November 14, 1991, of the 81 officers who faced departmental trials in 1991, 47 were cleared, and 34 were disciplined with penalties ranging from loss of vacation to a 90-day suspension.
- p. Damages have been awarded to victims of police misconduct in 300-400 cases annually since 1988, as a result of out-of-court settlements or judgments in civil actions. Meanwhile, on average, only about 107 complaints were substantiated annually by the CCRB in 1988-1992.
- q. The money paid out by the City in damages to alleged victims of police misconduct rose from approximately \$7 million in 1988, to \$13.5 million in 1992, to \$24 million in 1994.
- r. More than \$82 million was paid in damages to victims of police misconduct in 1352 cases between 1992 and 1995.
- s. In the vast majority of police misconduct cases that result in verdicts or substantial settlements for the victims, defendant City imposes no discipline, either before or after resolution in court, almost never reopens an investigation

previously conducted after such resolution, and sometimes promotes the abusive officer to a position of greater authority despite the judicial resolution.

t. In none of the approximately 8,000 complaints reviewed by the CCRB in 1987 and 1988 did any police officer provide evidence in support of a complainant.

u. Former New York County District Attorney Robert Morgenthau has been quoted as acknowledging that in the NYPD there is a "code of silence," or a "code of protection" that exists among officers and that is followed carefully.

v. In 1985, former Police Commissioner Benjamin Ward, testifying before a State Senate Committee, acknowledged the existence of the "code of silence" in the NYPD.

w. Former New York City Police Commissioner Robert Daly wrote in 1991 that the "blue wall of solidarity with its macho mores and prejudices, its cover-ups and silence, is reinforced every day in every way."

114. Plaintiff's injuries were a direct and proximate result of the defendants' wrongful policies, practices, customs and/or usages complained of herein and in existence at the time of the incidents complained of herein and of the knowing and repeated failure of the defendant, CITY and the NYPD to properly supervise, train and discipline their police officers.

115. Defendant, CITY, knew or should have known that the acts alleged herein would deprive Plaintiff of his rights, in violation of the Fourth, Fifth, Sixth, Ninth,

Thirteenth and Fourteenth Amendments to the United States Constitution and Article 1, §§ 1, 6, 11, and 12 of the Constitution of the State of New York, including, without limitation, Plaintiff's freedom from deprivation of liberty without due process of law.

116. Defendant, CITY, is directly liable and responsible for the acts of the defendant officers because it repeatedly and knowingly failed to properly supervise, train, instruct, and discipline them and because it repeatedly and knowingly failed to enforce the rules and regulations of the NYPD, and to require compliance with the constitutions and laws of the State of New York and the United States.

117. As a result of the foregoing, plaintiff was deprived of his liberty and property, experienced pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and was otherwise damaged and injured.

118. As a result of the aforementioned impermissible conduct plaintiff demands judgment against said defendants in a sum of money, which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

SEVENTH CAUSE OF ACTION
(Pursuant to 42 U.S.C 1988 against all Defendants)

119. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

120. That the actions of defendants heretofore described resulting in plaintiff's detention, imprisonment, assault and battery, use of excessive force and malicious prosecution deprived Plaintiff of rights, privileges and immunities as guaranteed under the United States Constitution, Amendments Four and Fourteen, the New York State Constitution and the Civil Rights Acts, 42 U.S.C. §1983.

121. That in the event that Plaintiff is successful in the prosecution of the aforesaid claim(s), Plaintiff shall be a prevailing party within the meaning of 42 U.S.C. §1988 and entitled to the recovery of attorneys' fees from defendants.

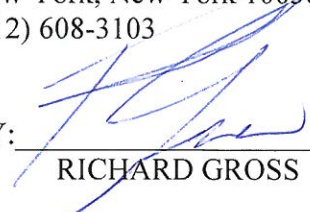
122. By reason of the foregoing, defendants became liable to Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

WHEREFORE, plaintiff, respectfully demands judgment against defendants, THE CITY OF NEW YORK, P.O. JOHN SIVORI, P.O. SGT. EDWARD THOMPSON and SGT. MICHAEL KATINAS and requests compensatory and punitive damages in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction; costs, interest and attorneys' fees under 42 U.S.C. §1988 and state law and such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
May 27, 2014

Yours, etc.

RUBERT & GROSS, P.C.
Attorneys for Plaintiff
150 Broadway, Suite 712
New York, New York 10038
(212) 608-3103

BY: 
RICHARD GROSS

RICHARD GROSS, an attorney admitted to practice in the Courts of New York, state:

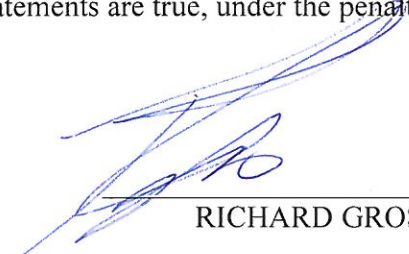
That I am a member of the law firm of RUBERT & GROSS, P.C., attorneys of record for plaintiff in the within action; I have read the foregoing COMPLAINT and know the contents thereof, the same is true to my own knowledge, except as to those matters therein stated to be alleged upon information and belief, and as to those matters I believe them to be true.

That the reason this verification is being made by me and not by the plaintiff is because the plaintiff does not reside in the county within which we maintain our office.

The grounds of my belief as to all matters not stated upon my own information are as follows: conversations with plaintiff and the documents contained within my file.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Brooklyn, New York
May 27, 2014



RICHARD GROSS

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:

WARREN BARTLEY

Plaintiff,

-against-

THE CITY OF NEW YORK ,P.O JOHN SIVORI,
Sheild #26385, SGT. MICHAEL KATINAS, Sheild No. 468 and
P.O. EDWARD THOMPSON, Shield #26456

Defendants.

SUMMONS and COMPLAINT

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